

MAINS MASTER PROGRAM (MMP) 2024

ETHICS – 11

Probity in Governance

Topic – Philosophical basis of governance & probity, Accountability & ethical Governance, Right to Information, Code of Ethics & Code of Conduct, Citizen Charter, Work Culture, Quality of Service Delivery, Utilisation of Public Funds, Challenges of Corruption.

Philosophical basis of governance & probity

➤ Philosophical basis of governance

- ✓ The philosophical basis of governance draws ideas from **various ethical school of thought** as to how the society is organised, how government derives its legitimacy, purpose of government and **ethical & moral** dimensions in governance.
- ✓ **Western philosophies**
 - **Social Contract Theory**
 - Thomas Hobbes, John Locke, Jean-Jacques Rousseau
 - Trace the origin of society & legitimacy of the government
 - The **legitimacy of government authority** arises from a **contract or agreement** among individuals to form a society and be governed by common rules.
 - This **social contract is based on the consent** of the governed, **where individuals trade some of their freedoms** for the protection and benefits provided by the state.
 - **Deontological ethics**
 - Deontological ethics, also known as **duty-based ethics**, is a moral theory that emphasizes the importance of **rules, duties, and obligations** in **ethical decision-making**.
 - It is grounded in the idea that **certain actions are inherently right or wrong**, regardless of their consequences.
 - In the context of governance, it focusses on the adherence to **laws, rights, and moral duties** as the basis for **just and legitimate governance**.
 - **Utilitarianism ethics**
 - Jeremy Bentham, John Stuart Mill
 - Government should aim at **maximising happiness & minimising suffering**.
 - "The greatest happiness for the greatest number."
 - Moral worth **of actions, policies, and laws** is determined by their **outcomes**, particularly in terms of maximizing overall well-being and minimizing suffering.
 - **Liberalism**
 - John Locke, Immanuel Kant
 - Liberalism stresses the importance of **liberty, equality, and justice**, with a government that is **limited by law and accountable to the people**.
 - Governance should protect **individual rights and freedoms**.

- **Marxism**
 - Karl Marx, Friedrich Engels
 - Governance should reflect the interests of the working class and aim **to abolish class distinctions**.
- ✓ **Indian & Chinese philosophies**
 - Indian scriptures like the Ramayana, Mahabharata, and Arthashastra, as well as Chinese philosophers like Confucius, have extensively addressed the **ethical foundations of governance**.
 - These diverse philosophical traditions emphasize the importance of **ethics, morality, and the public good** in governance.
 - **Moral duty of the ruler or the government** to ensure **the well-being** of the people or governed.
- **Probity in Governance**
 - ✓ Probity in governance refers to the adherence to high standards of ethical **behaviour, integrity, and accountability** in the **conduct of public affairs**.
 - ✓ Probity involves ensuring **transparency, fairness, and honesty** in the functioning of **government institutions and the actions of public officials**.
 - ✓ The concept of probity is essential to **fostering trust between the government and the public**, preventing corruption, and **promoting good governance**.
- **Positive outcomes of probity in governance**
 - ✓ Enhances public trust
 - ✓ Promotes efficiency
 - ✓ Prevents corruption
 - ✓ Upholds rule of law
 - ✓ Enhances inclusivity
- **What are the factors that affect probity in governance presently?**
 - ✓ Lack of ethical leadership
 - ✓ Weak legal & Institutional framework
 - ✓ Degradation of morals & values in public service
 - ✓ Manipulation & misinformation by media
 - ✓ Poor conflict resolution – conflict of interest & ethical dilemmas
 - ✓ Poor enforcement of transparency & accountability tools
 - ✓ Lack of neutrality & political interference
 - ✓ Poor work culture
- **Mechanisms to ensure probity in governance**
 - ✓ **Legal & Institutional framework**
 - Laws and regulations that define ethical standards and provide for penalties in cases of violations.
 - Example – PCA 1988, Whistle blowers protection act 2014, Lokpal act 2013, CVC, CBI, CIC etc.

✓ **Codes of Conduct & Ethics**

- Codes of conduct for public officials that outline expected behaviours and practices.
- **Example** – CCS conduct rules 1964, AIS conduct rules 1968, integrity pacts [2nd ARC] etc.

✓ **Public Participation**

- Involving citizens in the decision-making process and ensuring their access to information.
- **Example** – RTI act 2005, Social audit etc.

✓ **Public personnel Management**

✓ **Ethical training programmes**

✓ **Work culture**

➤ **Case Studies**

1) **Sardar Vallabhbhai Patel**, known as the "Iron Man of India," was a prominent leader in the Indian independence movement and played a crucial role in the integration of princely states into the Indian Union post-independence. He served as the first Deputy Prime Minister and Home Minister of India. He is known for his **integrity & honesty, transparency, accountability & impartiality** in his public duties. Moreover, he is staunch advocate of **rule of law**.

2) **Lal Bahadur Shastri**, who served as the second Prime Minister of India from 1964 to 1966 is one of the Indian politicians renowned for his **probity and integrity in public office**.

A notable example that highlights Lal Bahadur Shastri's commitment to probity occurred when he was the Minister of Railways in 1956. Following a tragic train accident in Ariyalur, Tamil Nadu, where a large number of passengers lost their lives, Shastri took full moral responsibility for the incident. Even though it was not directly his fault, he offered his resignation to Prime Minister Jawaharlal Nehru, emphasizing that a leader must be accountable for the failures of his department.

Nehru was initially reluctant to accept the resignation, recognizing Shastri's value and integrity. However, Shastri insisted on stepping down as a matter of principle, demonstrating that accountability and responsibility were non-negotiable in public office. His resignation was eventually accepted, and it became a defining moment that reinforced the importance of ethical governance in India.

Lal Bahadur Shastri's tenure as **Prime Minister** was marked by his **honesty, modesty, and dedication to the welfare of the people**. He is also remembered for his leadership during the Indo-Pakistan War of 1965 and his famous slogan, "**Jai Jawan Jai Kisan**," which underscored his commitment to both the defence forces and the farmers of India. Shastri's life and career continue to serve as an example of probity in public service, and his legacy is a benchmark for ethical governance in Indian politics.

3) **Durga Shakti Nagpal**, an IAS officer, took strong actions against the land scam and sand mafia racket in Uttar Pradesh, demonstrating probity in governance. This action highlighted the importance of integrity and accountability in public service.

Questions

1. What do you understand by probity in governance? Based on your understanding of the term, suggest measures for ensuring probity in government.
2. What do you understand by 'probity' in public life? What are the difficulties in practicing it in the present times? How can these difficulties be overcome?
3. You are an Indian Engineering Services (IES) officer working for the National Highways Authority of India (NHAI). You are in charge of a section of the Golden Quadrilateral highway project in your state, that is Uttar Pradesh, one of the most ambitious infrastructure projects in India. You are known for your integrity and commitment to probity in your professional duties.

While working on the project, you discover massive corruption and irregularities, including poor quality of work, misuse of funds, and collusion between contractors and officials. As a person of high integrity, you try to bring it to the notice of your immediate supervisor regarding all the illegal & unethical practices. However, your immediate supervisor advises you to overlook & ignore all this and simultaneously warns you of the consequences of reporting such matters.

In your opinion your supervisor is otherwise a good person, and it also appears that he is advising all this only for your own good. You are confused as to how act in this matter further.

1. What are the various ethical issues in the present case?
2. Under the given circumstances what will be the best course of action in your opinion?

Accountability & Ethical Governance

➤ What is accountability?

- ✓ Accountability in governance refers to the obligation of public officials to be **answerable for their actions**, decisions, and the use of public resources.
- ✓ It is a cornerstone of democratic governance and ensures that those in power are held responsible & answerable for their conduct and performance.
- ✓ Accountability mechanisms can include **audits, oversight bodies, transparency initiatives, and citizen participation**.

➤ Dimensions of Accountability

- ✓ Legal Dimensions
- ✓ Fiscal Dimensions [use of public funds]
- ✓ Policy & Programme Dimension [meeting goals, promises & expectation]
- ✓ Democratic Dimensions [Participation, consultation etc.]
- ✓ Ethical Dimensions [code of ethics & morality]

➤ Ethical Governance

- ✓ Ethical governance involves the **application of moral principles and values** in the conduct of public affairs.
- ✓ It emphasizes **integrity, fairness, transparency, and respect for the rule of law**.
- ✓ Ethical governance aims to ensure that **public officials act in the public interest**, make decisions based on **ethical considerations**, and maintain high standards of conduct.

➤ Principles of Accountability & Ethical Governance

- ✓ Transparency & accountability
- ✓ Enforcement

- ✓ Participation
- ✓ Inclusiveness
- ✓ Integrity & Moral standards
- ✓ Rule of law

➤ **Ethical Management & Management of Ethics**

✓ **Ethical Management**

- Ethical management refers to the practice of incorporating ethical principles into the decision-making processes and operations of an organization.
- It involves leaders and managers ensuring that their actions, policies, and practices align with moral standards and values.
- Ethical management aims to create a workplace culture that prioritizes integrity, fairness, and respect for stakeholders.

✓ **Management of Ethics**

- Process of developing, implementing, monitoring ethical policies & procedures.
- Precursor to Ethical management
- Formulating code of ethics → Management of ethics → Application in decision making
- **Example** – Medical Ethics; Code of Ethics for Public service etc.

Questions

1. What do you understand by the term's 'governance', 'good governance' and 'ethical governance'?
2. Briefly comment on the following
 - a) Ethical Governance
 - b) Ethical Management & Management of Ethics
3. What do you understand by the term 'good governance'? How far recent initiatives in terms of e-Governance steps taken by the State have helped the beneficiaries? Discuss with suitable examples